

25VECV03088 25VECV03088

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-18

Motion: MOTION FOR LEAVE TO AMEND COMPLAINTS TO ADD (1) FRAUD CAUSE OF ACTION AND (2) PUNITIVE DAMAGES PURSUANT TO CODE OF CIVIL PROCEDURE §425.13

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Case Number: 25VECV03088 Hearing Date: September 18, 2026 Dept: I

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

COUNTY
OF LOS ANGELES

TRICIA DOUD,

Plaintiffs,

vs.

SOHEIL SEAN YOUNAI, M.D., et al.

Defendants.

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CASE

NO: 25VECV03088 (Lead Case)

CONSOLIDATED

WITH: 26VECV00184

[TENTATIVE]

ORDER RE:

MOTION

FOR LEAVE TO AMEND COMPLAINTS TO ADD (1) FRAUD CAUSE OF ACTION AND (2)

PUNITIVE DAMAGES PURSUANT TO CODE OF CIVIL PROCEDURE §425.13

Dept.

I

HEARING

DATE: SEPTEMBER 18, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: June 3, 2025

TRIAL

DATE: None

I.

BACKGROUND

Plaintiff Tricia Doud underwent a breast augmentation surgery performed by Defendant Soheil Sean Younai, M.D. Plaintiff alleges Defendant Younai negligently performed the surgery and intentionally ignored her specific instructions regarding the size of implant and type of implant to be used. Plaintiff Doud specifically informed Younai that she only wanted silicone implants, not saline. Plaintiff also specified that she only wanted implants that were 250cc or less.

Plaintiff alleges Younai used saline implants that were 380-420 cc.

On June 3, 2025, Plaintiff filed this action against Defendants Younai, S. Sean Younai, M.D., Inc., California Center for Plastic Surgery and Regency Surgery Center, LLC (collectively "Defendants") alleging (1) battery; (2) medical malpractice (negligence); (3) violations of California Consumer Legal Remedies Act (Civil Code §1770(a)).

On January 12, 2026, Plaintiff Jesse Ingalls filed a complaint alleging loss of consortium. Ingalls is the husband of Plaintiff Doud. On February 18, 2026, the Court entered a stipulation and order relating and consolidating the two actions.

On August 5, 2026, Plaintiffs filed the instant Motion for Leave to Amend the Complaint to (1) add a fraud cause of action and (2) punitive damages pursuant to Code of Civil Procedure section 425.13.

On September 4, 2026, Defendants Younai, S. Sean Younai, M.D., Inc. and S. Sean Younai, Inc d/b/a California Center for Plastic Surgery filed an opposition to the Motion. On September 9, 2026, Defendant Regency Surgery Center, LLC filed a joinder to the Motion. On September 11, 2026, Plaintiffs filed a reply.

II.

LEGAL
STANDARD

A. Request

for Leave to Amend pursuant to Code of Civil Procedure section 473

“A

party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike.” (Code Civ. Proc., §472.) “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” (Code Civ. Proc., §473, subd. (a)(1).)

The

policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified: “If

the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan

v. Sup.Ct. (1959) 172 Cal.App.2d 527, 530 (emphasis added).) Courts are bound to apply a policy of great liberality in permitting amendments to the complaint “at any stage of the proceedings, up to and including trial,” absent prejudice to the adverse party. (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.)

Prejudice

exists where the amendment would require delaying the trial, resulting in loss of critical evidence or added costs of preparation, increased burden of discovery, etc. (Magpali v. Farmers

Group, Inc. (1996) 48 Cal.App.4th 471, 486-488.) Delay alone is insufficient grounds for denial of leave to amend. If the delay

in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case even if sought as late as the time of trial. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.)

B. Request to Allege Punitive Damages

pursuant to Code of Civil Procedure section 425.13

"In any

action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed." (Code Civ. Proc., § 425.13, subd. (a).) The motion must be supported by affidavits

(declarations) stating facts sufficient to support a finding that there is a

"substantial probability" plaintiff will prevail on the punitive

damages claim. (*Id.*) A motion under Code of Civil Procedure

section 425.13 is akin to a demurrer or summary judgment in reverse: "Rather than requiring the defendant to

defeat the plaintiff's pleading by showing it is legally or factually

meritless, the motion requires the plaintiff to demonstrate that he possesses a

legally sufficient claim which is 'substantiated,' that is, supported by

competent, admissible evidence." (*College*

Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 719.)

"Substantial

probability" requires plaintiff to show: (1) a legally sufficient claim (2)

that is "substantiated" by competent, admissible evidence (declarations,

etc.). (*Id.*) Plaintiff must therefore produce evidence

that, if accepted by the trier of fact, would establish a prima facie showing

of "malice, oppression or fraud," bearing in mind the "clear and convincing"

evidence standard of proof required in such case." (*Looney v. Supr. Ct.* (1993) 16

Cal.App.4th 521; see Civ. C., § 3294, subd. (a)).

However,

the court may not weigh conflicting affidavits or predict the likely outcome at a trial. "(S)ection 425.13(a) does not

authorize the trial court to reject a well pled and factually supported

punitive damages claim simply because the court believes the evidence is not

strong enough for probable success before a jury." (*College Hosp., Inc., supra*, 8

Cal.4th at 709.) “[T]he court must deny the section 425.13(a) motion where the facts asserted in the proposed amended complaint are legally insufficient to support a punitive damages claim. (See §§ 430.10, 436-437.) The court also must deny the motion where the evidence provided in the ‘supporting and opposing affidavits’ either negates or fails to reveal the actual existence of a triable claim. (See § 437c, subd. (c).) The section 425.13(a) motion may be granted only where the plaintiff demonstrates that both requirements are met. This test is largely consistent with the ‘prima facie’ approach formulated by the Court of Appeals.” (Id.)

III.

REQUEST

FOR JUDICIAL NOTICE

Plaintiffs’ Request for Judicial Notice ISO of the Motion is granted as to Exhibits A and B pursuant to Evidence Code section 452 subdivisions (b) and (d).

Plaintiffs’ Request for Judicial

Notice ISO of the Reply is denied as to Exhibits 6 and 2 and granted as to

Exhibit 1. Exhibit 6 is the data sheet

for Mentor Saline Breast Implants.

Exhibit 2 is an article written by Defendant Younai. Exhibit 1 is the official resource brochure published by the Medical Board of California, which qualifies for judicial notice under Evidence Code section 452 subdivision (c). Exhibits 2 and 6 are privately drafted documents that do not fall within any of the categories for judicial notice.

IV.

EVIDENTIARY

OBJECTIONS

Defendants’ Objections—OVERRULE all objections

Plaintiffs’ Objections—OVERRULE all objections

V.

DISCUSSION

Plaintiffs'

requested relief is two-fold. Plaintiffs

request leave to add a fraud cause of action against Defendants. The request to add a fraud claim is evaluated under Code of Civil Procedure section 473 subdivision (a) as an ordinary request to amend the complaint.

Plaintiffs

also request leave to add a punitive damages claim to Doud's existing battery cause of action. The request to add punitive damages to the battery cause of action is evaluated under Code of Civil Procedure section 425.13.

A. Request for leave to add fraud cause of action

Plaintiffs

submit a declaration satisfying the requirements of California Rules of Court Rule 3.1324 subdivision (b). Plaintiffs'

counsel attests to the facts that gave rise to the proposed fraud cause of action, when they were discovered these facts, the effect of the amendment and why the fraud claim was not asserted earlier.

(Baskin Dec., ¶¶9 and 10, Ex. 4.)

Plaintiffs did not discover the fraud claim until receipt of Defendant's discovery responses on June 16, 2026.

Plaintiffs' counsel claims the discovery responses established that Defendant Younai does not use silicone implants in breast augmentation surgeries, nor did he provide legally required information to Plaintiffs about the implants. (Id. at ¶¶7, 9 and 10.)

Defendants

do not argue prejudice, nor would such an argument prevail. There is no trial date. The fraud cause of action is based on the same general allegations already alleged in the original complaint.

Defendants

instead argue that the fraud claim lacks merit and is unsupported by admissible evidence. Defendants argue the evidence that prompted Plaintiffs to seek leave does not establish fraud. Defendants argue the disclosures required under Business and Professions Code section 2259 do not apply, because the

disclosures only apply to silicone implants.

Defendants argue Plaintiffs misconstrue Younai's discovery responses.

Defendants

apply the wrong standard for leave to amend.

Plaintiffs are not required to prove the merits of their fraud claim with admissible evidence to obtain leave to amend.

Ordinarily, the validity of an amendment is not grounds for denial of leave to amend and its legal sufficiency should be tested in other appropriate proceedings. (*Atkinson v. Elk Corp.*

(2003) 109 Cal.App.4th 739, 760.) "Leave

to amend should be denied only where the facts are not in dispute, and the nature of the plaintiff's claim is clear, but under substantive law, no

liability exists and no amendment would change the result." (*Edwards v. Superior Court* (2001) 93 Cal.App.4th 172, 180 (reversing denial

of leave to amend based on trial court's erroneous application of CCP §364 as an affirmative defense).) Defendants fail to demonstrate that the fraud claim is barred as a matter of law based on undisputed facts or evidence.

Plaintiffs'

Motion for Leave to Amend is granted as to the proposed fraud cause of action.

B. Request for Leave to Add Punitive Damages

pursuant to section 425.13

Plaintiffs move to add punitive damages to Doud's battery claim. In order to prevail,

Plaintiffs must establish a substantial probability that they will prevail on the battery claim, which requires them to show (1) a legally sufficient claim for medical battery (2) that is "substantiated" by competent, admissible evidence (declarations, etc.). (*College*

Hospital Inc., supra, 8 Cal.4th at 719.) Plaintiffs must also present evidence of malice, fraud or oppression and in evaluating that evidence, the Court must keep in mind the "clear and convincing" standard under Civil Code section 3294.

To

establish a medical battery claim, plaintiff must prove all of the following:

1. defendant performed a medical procedure without plaintiff's consent; or plaintiff consented to one medical procedure, but defendant performed a

substantially different medical procedure; 2. That plaintiff was harmed; and 3. That defendant's conduct was a substantial factor in causing plaintiff's harm. (CACI 530A.) A patient can consent to a medical procedure by words or conduct. (Id.)

"The

battery theory should be reserved for those circumstances when a doctor performs an operation to which the patient has not consented. When the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present. However, when the

patient consents to certain treatment and the doctor performs that treatment but an undisclosed inherent complication with a low probability occurs, no intentional deviation from the consent given appears; rather, the doctor in obtaining consent may have failed to meet his due care duty to disclose pertinent information. In that situation the action should be pleaded in negligence." (Cobb v. Grant

(1971) 8 Cal.3d 229, 240; Kaplan v. Mamelak (2008) 162 Cal.App.4th 637, 646-647)(consent form signed by plaintiff only agreed to surgery on disk T8-9 of spine and defendant performed surgery on T6-7 and T7-8; finder of fact had to determine whether surgery on an incorrect disk is a reasonable risk of surgery performed on plaintiff or if it qualified as entirely different procedure); Perry v. Shaw (2001) 88 Cal.App.4th 658, 664 (affirming jury verdict that defendant committed medical battery where plaintiff consented to procedure for removal of excess skin and defendant performed breast augmentation procedure to which she had not consented); Ashcraft v. King (1991) 228 Cal.App.3d 604, 611 (medical battery claim stated where patient only agreed to blood transfusions from family members and physician transfused nonfamily member blood, in violation of patient's consent and unwittingly infecting him with HIV).)

Plaintiffs

allege a legally sufficient medical battery claim. Plaintiffs allege that Doud consented to a breast augmentation surgery only if silicone, "gummy bear" implants were used that were 250cc or less. (Complaint, ¶¶11, 36, 41, 42.) Plaintiffs allege

Defendants violated her consent to the breast augmentation surgery when they inserted saline breast implants that were 380-420cc. (Id. at ¶¶11, 36, 41, 42.) Plaintiffs allege medical battery based on her consent to one procedure and Defendants' intentional deviation from Plaintiffs' consent by performing a different procedure. (See e.g., Ashcroft, supra, 228 Cal.App.3d at 611.)

However,

Plaintiffs' evidence in support of the battery claim is not substantial. Doud testified at deposition that she tried on implants during the initial consult and selected a specific implant size, which was smaller than the one Younai ultimately implanted. (Baskin Dec., Ex. 3, Doud Dep., 122:3-25-124:7.) Doud testified that she clearly stated to

Younai that she wanted the smaller implant, and she was "interested" in and had a "preference" for silicone. (Baskin Dec., Ex. 3, Doud Dep., 19:10-12, 15-19.)

Defendant

Younai responded in discovery that he had performed between 75 and 125 breast surgeries, all involving saline implants.

(Baskin Dec., Ex. 4, 4:17-25-5:2.)

Defendant Younai stated none of those surgeries involved silicone implants. (Id. at 5:13-14.)

Neither

Plaintiffs' deposition testimony nor the discovery responses are substantial evidence of Defendants' alleged wrongful conduct or clear and convincing evidence of Defendant Younai's malice, fraud or oppression. The deposition testimony and Younai's discovery responses do not satisfy the "clear and convincing" standard required for punitive damages. Doud does not testify that she stated to Defendant Younai during the consultation that she "only" wanted 250cc implants or smaller, or that she only wanted silicone or gummy bear implants. Doud only testified that she told Younai she was "interested in" and had a "preference for" in the silicone implants.

In addition,

Younai denies Plaintiffs' version of events.

Younai's testimony and Plaintiff Doud's medical records directly contradict Plaintiffs' allegation that Doud only consented to silicone implants of 250cc or less. Younai testifies that Doud

elected and consented to 350 cc saline implant on one side, 375 cc saline on the other side and signed a consent form to this effect. (Younai Dec., ¶15.) The consent form does not indicate whether Doud chose silicone or saline implants.

(Metros Dec., Ex. C, Consent for Breast Surgery.) Younai's counter evidence only underscores Plaintiffs' failure to submit substantial evidence in support of Doud's medical battery claim.

Plaintiffs

also fail to present expert evidence establishing medical causation, i.e. that Defendants' conduct was a substantial factor in causing Plaintiff Doud's harm. "The law is well settled that in a personal injury action causation must be proven within a reasonable medical probability based on competent expert testimony. Mere possibility alone is insufficient to establish a prima facie case. That there is a distinction between a reasonable medical probability and a medical possibility needs little discussion. There can be many possible causes, indeed, an infinite number of circumstances that can produce an injury or disease. A possible cause only becomes probable when, in the absence of other reasonable causal explanations, it becomes more likely than not that the injury was a result of its action. This is the outer limit of inference upon which an issue may be submitted to the jury." (Jennings v. Palomar Pomerado Health Systems, Inc. (2003) 114 Cal.App.4th 1108, 1118 (trial court properly struck medical expert testimony on issue of causation where expert's opinion failed to provide a reasoned explanation regarding the etiology connecting plaintiff's infected subcutaneous tissue to the nidus inside peritoneal cavity where retractor was retained).)

Plaintiffs

also failed to present substantial evidence to support imposition of punitive damages against the corporate defendants.

Plaintiffs argue Defendant Regency Surgery Center, LLC is liable based on respondeat superior. Civil Code section 3294 subdivision (b) states, "[a]n employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, §3294, subd. (b).)

Plaintiffs

rely on the Physician Employment Agreement produced by Regency in discovery. (Baskin Dec., Ex. 1.) The agreement is not with Regency, however. The agreement is with Agile Occupational

Medicine, PC, a nonparty. Plaintiffs claim

Agile is the manager of Regency.

(Plaintiff's RJN, Ex. B.) Agile's

status as Regency's manager alone would not be grounds to hold Regency liable for Younai's conduct based on Younai's contract with Agile. In addition, there is no evidence that an officer, director, or managing agent of the corporate defendants' had advance knowledge of Younai's unfitness and employed him with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. Plaintiffs submit a Stipulated Settlement and Disciplinary Order with the Medical Board as to Younai. (Plaintiffs' RJN, Ex. A.) The wrongful conduct at issue in the stipulated settlement did not involve conduct similar to that alleged here, e.g. intentional medical battery. (Id. (gross negligence based on discharge of postoperative patient rather than sending her to hospital for monitoring).)

Plaintiffs' request for leave to add a punitive damages claim to Doud's battery cause of action is denied. Plaintiffs fail to establish a substantial probability of prevailing on their cause of action for medical battery with substantial admissible evidence and a claim for punitive damages with clear and convincing evidence of malice, fraud or oppression.

VI.

CONCLUSION

Plaintiffs' Motion for Leave to Amend Complaints to Add (1) fraud cause of action and (2) punitive damages pursuant to Code of Civil Procedure section 425.13 is denied in part and granted in part. Plaintiffs' request for leave to add a claim for fraud is granted. Plaintiffs' request for leave to add a claim for punitive damages pursuant to Code of Civil Procedure section 425.13 is denied.

Moving
party to give notice.

Dated: September
18, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court